Province of Alberta

SAFETY CODES ACT

BUILDING CODE REGULATION

Alberta Regulation 5/2024

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Extract

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Note

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National Building Code — 2023 Alberta Edition

1 The *National Building Code — 2023 Alberta Edition*, published by the National Research Council of Canada and as amended or replaced from time to time, is declared in force with respect to buildings.

National Energy Code of Canada for Buildings 2020

2(1) The *National Energy Code of Canada for Buildings 2020*, published by the National Research Council of Canada and as amended or replaced from time to time, is declared in force with respect to buildings with the variations set out in this section.

(2) Clause 1.1.2.1.(1)(c) is repealed and the following is substituted:

c) at least the tiered performance requirements specified as Energy Performance Tier 1 in Table 10.1.2.1. in Part 10.

(3) Sentence 10.1.2.1.(1) is amended by striking out "one of Energy Performance Tiers 1 to 4 specified in Table 10.1.2.1., each of" **and substituting** "at least Energy Performance Tier 1 specified in Table 10.1.2.1.,".

Restrictions on accredited agencies, accredited municipalities and accredited regional services commissions

3 An accredited agency, accredited municipality or accredited regional services commission shall not impose a requirement

(a) to conform to an Applicable Energy Performance Tier higher than Applicable Energy Performance Tier 1 as specified in Table 9.36.7.2 in the *National Building Code — 2023 Alberta Edition* declared in force by section 1,

(b) to accumulate the minimum sum of energy conservation points required to attain an Energy Performance Tier higher than Energy Performance Tier 1 as specified in Table 9.36.8.2 in the *National Building Code — 2023 Alberta Edition* declared in force by section 1, or

(c) to design and construct buildings in accordance with an Energy Performance Tier higher than Energy Performance Tier 1 as specified in Table 10.1.2.1. in the *National Energy Code of Canada for Buildings 2020* declared in force by section 2.

Disclaimer

4 The codes declared in force by this Regulation, and any codes and standards referred to in those codes, do not make or imply any assurance or guarantee by the Crown in right of Alberta with respect to the life expectancy, durability or operating performance of materials, appliances, systems and equipment referred to in those codes or standards.

Repeal

5 The *Building Code Regulation* (AR 31/2015) is repealed.

Coming into force

6 This Regulation comes into force on May 1, 2024.





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